COTTONWOOD DRAW FARMS · WASHAKIE COUNTY, WYOMING

Cottonwood Draw Farms · Seasonal Harvest Work

SAMPLE

A demonstration. This farm is invented, to show a Washakie County farm what a page of its own could look like. The county, the crops, the agencies and the law are real, and every statement of law on this page is sourced in the middle column.

WHAT THIS IS

We hire a seasonal crew for the beet and barley harvest, east of Worland. This page says what the work is, what the law says you are owed, and who to call if something is wrong. It is written to be read by the people doing the work.

Esta página en español — versión completa, no un resumen

beet and barley harvest · late September into November · call or text (307) 555-0168

THE PAGE LAYOUT BELOW IS STANDARD ON EVERY GYR-O SITE

A PLAIN ANSWERS ✓

– What is the work, and when?

Beet and barley harvest, and the hay that comes before it. Late September into November, weather deciding the exact days.

- **Sugar beets** — running with the harvester and the trucks, piling, and cleaning up the headlands.

- **Malt barley** — grain cart, truck driving, and the elevator run.
- **Hay** — stacking and hauling, earlier in the season.

Sugar beets and barley are two of the three largest crops in this county by acreage[21]. The season is short and the days are long while it lasts.

– How much does the job pay?

This page does not print a wage figure, on purpose. Not because we are hiding it — the rate is in the job order you are given, and we will tell you on the telephone. Because the legal floor under that rate changes, and a number typed into a web page goes stale and then misleads the person who most needs it to be right.

What the law actually requires is that you be offered and paid **the highest** of several figures: the adverse effect wage rate, an approved prevailing wage, any collective bargaining rate, the federal minimum wage, the state minimum wage, or whatever higher rate the employer intends to pay [2].

For a job filled through the H-2A program, the one that usually governs is the **adverse effect wage rate**, or AEWR. The current rates are published by the Department of Labor, by occupation code and by state, in one place[3]. That is where to look on the day you need it.

> **And one thing you should know before you look.** On 26 August 2026 a federal court held that the method the Department of Labor was using to set those rates was unlawful, and ordered the Department to produce a new one. The rates already published still apply for now, and the Department has said employers should keep paying them. But it has also said that workers employed between then and whenever the new method arrives **may later be owed a wage adjustment** for that period[4]. If you work this harvest, keep your pay stubs.

One protection does not move: if a new rate published during your contract is **lower** than the rate you were guaranteed, the employer must still pay the rate you were guaranteed[2]. Your pay cannot be cut in the middle of the season because a formula in Washington changed.

– Does Wyoming's minimum wage apply to me?

No. Wyoming's minimum wage law defines who counts as an employee, and the definition says it "shall not include … any individual employed in agriculture"[5]. Farm work is excluded outright.

So the state figure is not your floor, and anyone who quotes it to you — in either direction — is quoting the wrong law. Your floor is the federal minimum wage where federal wage law reaches the farm, or the AEWR and prevailing wage rules above if the job came through H-2A.

– Am I guaranteed any hours?

If you are here on an H-2A visa, or doing the same work alongside that crew, yes. The employer has to offer you work for at least **three-fourths of the workdays** in your contract period. If less work is offered than that, the employer owes you what you would have earned had you worked the guaranteed days[1].

The regulation does the arithmetic itself: a ten-week contract at six days a week and eight hours a day is 480 hours, so the guarantee is **360 hours**[1]. Your own Sabbath and the federal holidays do not count against it.

This is why your pay stub has to show guaranteed hours separately from hours above the guarantee — so you can check it yourself[1].

– Is the housing free? What condition does it have to be in?

At no cost to H-2A workers, and to anyone doing the same work who cannot reasonably get home at the end of the day[1]. Not deducted, not a deposit, not rent.

It also has to meet federal housing standards — a real list, covering water, toilets, cooking, beds, heating, screens and so on. Which list applies turns on an odd detail: housing built from **3 April 1980** onward must meet the Occupational Safety and Health Administration's standards, while older housing may meet either those or an earlier set[13].

You are also owed either three meals a day or free and convenient cooking facilities to make your own. If meals are provided and charged for, the charge has a legal maximum and must be stated in the job offer[1].

– Who pays to get me here, and to the field each day?

1. **Getting here.** Once you complete half of the contract period, the employer must pay your reasonable travel and daily subsistence cost from where you came from — in this country or abroad — if it was not advanced to you already[1].
2. **To the field.** Transportation between employer housing and the worksite is **at no cost to you**[1].
3. **Going home.** At the end of the contract, or if you are let go without cause and have no other H-2A job to go to, the employer provides or pays for the trip back[1].

The vehicle matters too. A crew vehicle must carry insurance of **not less than $100,000 for each seat**[12], and must meet safety standards on lights, brakes, tires, steering and loading, with a seat for every person riding[12].

– Someone asked me for money to get this job. Is that allowed?

No. The rule is flat: the employer and its agents must not have "sought or received payment of any kind" from a worker for anything connected to getting the job certified[7].

It reaches the recruiter as well. The employer must **put it in writing** in its contract with any foreign labor contractor or recruiter that they may not seek or take money from workers either [7].

If you paid someone to get this job, that is worth a telephone call to the number at the bottom of this column. Keep whatever receipt, message or note you have.

– Should I have something in writing?

Yes, and in a language you understand[1]. The timing is set:

- An H-2A worker gets the work contract **no later than when applying for the visa.**
- A worker doing the same work who is already here gets it **no later than the first day of work.**

If no separate contract is handed to you, then the job order is your contract, together with whatever the law requires on top of it[1]. So keep the job order. It is the document.

– Water, a toilet, and somewhere to wash — in the field?

Where **eleven or more** people are doing hand labor in the field on a given day, the employer must provide drinking water, a toilet and handwashing facilities[8]. The water has to be drinkable, "suitably cool," in enough quantity for the heat and the work, and placed where everyone can actually reach it[8].

> **Here is the part almost everyone gets wrong in Wyoming.** For most workplace safety questions in this state you call Wyoming's own safety agency. But field sanitation is one of the things Wyoming did **not** take on. Drinking water, toilets and handwashing in the field, and farm labor camps, are enforced here by the federal **Wage and Hour Division** instead[9]. Calling the wrong one costs you weeks.

– What happens if I get hurt?

This is the most important answer on the page, because Wyoming is unusual and the answer depends on how you were hired.

Wyoming requires workers' compensation coverage only for employments it lists as extra-hazardous. In the agriculture sector, the **only** listed entry is logging. Crop production and animal production are not on the list at all, which means coverage for ordinary farm and ranch work is **optional** — something an employer may elect to carry, not something the state requires [6].

But if you are here through H-2A, you must be covered anyway. Federal law anticipates exactly this situation: where a state exempts agricultural work from its compensation system, the H-2A employer has to provide insurance giving benefits **at least equal** to what the state's compensation law would give for comparable work, at no cost to you — and must file proof of it with the government before being certified to hire at all [1].

> **So two people can be stacking the same hay with different protection.** The guest worker is covered by federal requirement. The neighbor hired locally may have no coverage unless this farm chose to carry it. **Ask before you start, and ask for the answer in writing.** It is a fair question and a careful employer will not mind it.

– What should my pay stub show?

On or before each payday, in writing [1]:

- Total earnings for the pay period, and the hourly or piece rate.
- **Hours offered, shown separately** as three-fourths-guarantee hours and hours above the guarantee.
- Hours actually worked.
- Every deduction, itemized.
- Units produced each day, if you are paid by the piece.
- The pay period dates, and the employer's name, address and federal identification number.

Pay comes at least **twice a month**, or more often if that is the local practice [1]. A deduction is not lawful if it carries a profit to the employer, or is mainly for the employer's own benefit or convenience [1].

If you are not on an H-2A visa, a parallel set of rules reaches the same place: itemized written statement each pay period, and payroll records kept for **three years** [11].

– Is the visa crew covered by the same law I am?

No, and this surprises people. Two crews can work the same field under two different statutes.

- **Workers here on an H-2A visa** are covered by the H-2A rules — the job-offer requirements this column keeps citing[1].
- **Migrant and seasonal workers who are not on that visa** are covered by a different law, the Migrant and Seasonal Agricultural Worker Protection Act, which requires written disclosure of the terms when you are recruited, wage statements, vehicle safety and insurance, and housing standards[11].

The second law expressly **excludes** H-2A workers from its definitions[10]. They are not left unprotected — they are protected by the other set. But it does mean the answer to "what am I owed" starts with how you were hired.

That law also gives you two things you control yourself: a retaliation complaint to the Secretary of Labor **within 180 days**, and the right to sue in federal court without going through any agency first[14].

– Something is wrong. Who do I call?

Wage and Hour Division, U.S. Department of Labor — 1-866-487-9243 (1-866-4-US-WAGE), 8am to 5pm in your own time zone. This is the right number for wages, the hour guarantee, housing, transportation, recruitment fees, and — in Wyoming — field sanitation[18].

Wyoming has no Wage and Hour office of its own; the district office covering this state is in **Salt Lake City**[20].

What the Department says about calling:

- Your name, the nature of the complaint, and whether a complaint exists at all **may not be disclosed**[15].
- It "does not ask about the immigration status of employees," except as needed to enforce the temporary labor certification programs themselves, and does not share information that could identify you to another agency[15].
- Retaliating against you for complaining or cooperating is itself unlawful[15].

A second door, much less known. You can walk into a Wyoming workforce center and file a complaint there about a violation of employment law. The state has to take it and refer it on, and because you are a farmworker the clock runs faster than it does for other complaints[17]. The state's farmworker program office is in Riverton[19].

For safety matters other than field sanitation: **Wyoming OSHA, (307) 777-7786**[9].

– Is all of this actually being enforced right now?

An honest answer: **most of it, but not all, and we would rather tell you which.**

A set of newer H-2A protections added in 2024 is still printed in the regulations but is **not currently being enforced**. The Department of Labor instructed its own investigators to suspend enforcement of everything the 2024 rule added, after courts in several states blocked parts of it, and a proposal to remove those provisions is pending and not final[16].

Everything this column tells you — the hour guarantee, no-cost housing to federal standards, meals or a kitchen, the three transportation duties, no recruitment fees, the written contract, workers' compensation, the pay stub, the limits on deductions — comes from the older rules and is **not affected** by that suspension[16].

What is affected is a thinner layer on top: seat belt requirements in crew vehicles, progressive discipline before a for-cause termination, and some disclosure items. Those may or may not survive. We have left them out of this column rather than tell you that you have something you may not be able to enforce.

– Why a web page, and not a flyer at the store?

We put up flyers too. This page is the one that is always here, always the same, and always in both languages: nothing to log into, nothing to scroll past, the work and the law in one place.

And it is honest about its own limits. Where the law is unsettled, it says so. Where a number would go stale, it sends you to the place the number actually lives. Column C has the detail, and the middle column shows you every source before you decide whether to go look at it yourself.

B SOURCES ✓

HOW TO READ A CARD

Every card below reads the same way, top to bottom. Parts 4 and 5 are the ones a bare footnote never gives you.

1. **Number and kind** — what sort of thing it is
2. **Title** — what it is called
3. **Provenance** — who made it, when, under what license
4. **Preview** — what you would find if you went there
5. **Why it is cited** — what it is doing on this page
6. **The link** — last, and only last

INTERNAL LINKS

The two most recent content changes, and the record behind them.

2 October 2026 — the wage answer no longer carries a figure

A court held the rate-setting method unlawful on 26 August. The answer in column A now explains the floor, sends you to the official rate page, and tells you to keep your pay stubs.

2 October 2026 — the injury answer, after checking what Wyoming actually requires

Workers' compensation is optional for farm work in this state, but an H-2A employer must provide equivalent coverage anyway. Two people on the same crew can stand in different positions.

Chronicle — what has been happening, and why

The whole record in plain language, newest first: how this page was built, what each choice was for, and what is still untested — including that no real farm and no real crew has seen it.

EXTERNAL LINKS

Every reference to some other website, previewed. The link is always the last line — read the card first and decide whether you need the round-trip distraction of visiting the original at all.

1 REGULATION · WHAT THE JOB OFFER MUST CONTAIN

20 CFR 655.122 — Contents of job offers

Employment and Training Administration, U.S. Department of Labor · 87 FR 61791 (12 October 2022), as amended 89 FR 34060 (29 April 2024)

The spine of H-2A worker protection. Housing at no cost to federal standards (d); meals or free cooking facilities (g); the three transportation duties and the 50-percent reimbursement (h); the three-fourths guarantee with its worked example (i); earnings records open to the worker (j); the pay statement showing guarantee hours separately (k); pay at least twice monthly (m); deductions that may carry no profit to the employer (p); the written work contract in a language the worker understands (q); and, at (e), workers' compensation including the rule for states that exempt agriculture.

Why it is cited: nearly every entitlement in column A is a subsection of this one regulation. Cited many times rather than paraphrased once, so a reader can check any single answer.

→ ecfr.gov · 20 CFR 655.122

2 REGULATION · THE WAGE FLOOR

20 CFR 655.120 — Offered wage rate

Employment and Training Administration, U.S. Department of Labor · amended 88 FR 12801, 89 FR 34060, 90 FR 47963 (2 October 2025)

Requires the employer to offer, advertise and pay the **highest** of the adverse effect wage rate, an approved prevailing wage, a collective bargaining rate, the federal minimum wage, the state minimum wage, or any higher rate the employer intends to pay. Subsection (b) sets the method: statewide figures from the Bureau of Labor Statistics at two skill levels, a downward housing adjustment capped at 30 percent, and the occupation decided by what the worker does on more than half the workdays. Subsection (b)(6) is the ratchet: where an updated rate is lower than the guaranteed rate, the employer must keep paying the guaranteed rate.

Why it is cited: it is the authority for the two things column A says about pay — that the floor is a highest-of test, and that a mid-season recalculation cannot cut a guaranteed rate.

→ ecfr.gov · 20 CFR 655.120

3 OFFICIAL DATA · WHERE THE CURRENT RATE LIVES

H-2A Adverse Effect Wage Rates (AEWRs)

Office of Foreign Labor Certification, U.S. Department of Labor · updated as rates are issued

The authoritative publication point for every AEWR, named verbatim in the Federal Register notice that sets them: “All hourly AEWRs determined under 20 CFR 655.120(b) are available for each SOC code and geographic area at the following URL.” The page is split into range occupations and all non-range occupations, with non-range rates distributed as a downloadable spreadsheet by occupation code and state, plus an archive of prior periods.

Why it is cited: this page deliberately prints no rate. This is where the rate is, and the sequence is: find the occupation code for what you actually do, find the skill level stated in your job order, then read the Wyoming row.

→ flag.dol.gov/wage-data/adverse-effect-wage-rates

4 AGENCY ANNOUNCEMENT · A COURT ORDER, FIVE WEEKS OLD

OFLC Announces Updates to Implementation of the H-2A Adverse Effect Wage Rate Methodology... Compliance with District Court Order

Office of Foreign Labor Certification, U.S. Department of Labor · 2 September 2026

Reports the order of 26 August 2026 in *United Farm Workers v. Department of Labor*, No. 25-cv-01614 (E.D. Cal.), holding the Department’s wage-setting method unlawful and directing it to produce a new method and publish new rates promptly. The rule was not struck down. The announcement states that current rates remain applicable and employers should continue to adhere to applicable law, and that employers may be required to make wage adjustment payments for the period between the announcement and a new method — while stating that no such payment obligation exists at this time. No deadline was given.

Why it is cited: it is the reason the pay answer is written the way it is, and the reason a worker on this harvest should keep every pay stub.

→ flag.dol.gov/announcement/2026-09-02

5 STATE STATUTE · THE AGRICULTURAL EXCLUSION

Wyoming Statutes 27-4-201 and 27-4-202 — minimum wage

Wyoming Statutes, 2025 · Title 27, Chapter 4, Article 2

Section 27-4-202(a) sets the state minimum wage. Section 27-4-201(a)(iv) defines “employee” for that purpose and excludes, at subparagraph (A), “any individual employed in agriculture.” Domestic service, bona fide executive and professional employees, government employees, certain nonprofit activity and outside salesmen are excluded in the same list.

Why it is cited: because the state minimum wage is the first thing people reach for, and for farm work in Wyoming it is simply the wrong statute. Stating the figure without the

exclusion would mislead in both directions.

→ law.justia.com · W.S. 27-4-201

6 STATE STATUTE · WHO MUST BE COVERED FOR INJURY

Wyoming Statutes 27-14-108 — extrahazardous employments; elective coverage

Wyoming Statutes, 2025 · Worker's Compensation Act

Subsection (a) lists the employments for which Wyoming requires workers' compensation coverage, by industry classification. The entire entry for the agriculture sector is logging. Crop production and animal production appear nowhere in the list. Subsection (j) then allows any employer whose work is not listed to elect coverage voluntarily, for all employees, withdrawable after two years.

Why it is cited: it establishes the gap that makes the injury answer in column A matter — coverage for ordinary farm work in this state is a choice the employer makes, not a requirement.

→ law.justia.com · W.S. 27-14-108

7 REGULATION · EMPLOYER ASSURANCES

20 CFR 655.135 — Assurances and obligations of H-2A employers

Employment and Training Administration, U.S. Department of Labor · 87 FR 61791, as amended 89 FR 34062

Subsection (j): the employer and its agents have not sought or received payment of any kind from any employee for anything related to obtaining the labor certification. Subsection (k): the employer must contractually prohibit, in writing, any foreign labor contractor or recruiter it engages from seeking or receiving payment from prospective workers. Subsection (p) requires copies of agreements with agents and recruiters, and their identity and location. Also here: non-discriminatory hiring (a) and the no-strike condition (b).

Why it is cited: recruitment fees are the most common thing a worker pays that they should never have paid, and the prohibition reaches the recruiter through the employer's own contract.

→ ecfr.gov · 20 CFR 655.135

8 SAFETY STANDARD · WATER, TOILETS, HANDWASHING

29 CFR 1928.110 — Field sanitation

Occupational Safety and Health Administration, U.S. Department of Labor · 52 FR 16095 (1 May 1987), amended 76 FR 33612 (8 June 2011)

Applies to any agricultural establishment where eleven or more employees are engaged on any given day in hand-labor operations in the field. Requires potable water, "suitably cool and in sufficient amounts, taking into account the air temperature, humidity and the nature of the work," placed where all employees can reach it and dispensed in single-use cups or by fountain; one toilet and one handwashing facility per twenty employees within a quarter-mile walk; and reasonable opportunity to use them. Hand-labor excludes livestock care and work in permanent structures.

Why it is cited: it is the standard, and the eleven-employee threshold is the first thing to establish before anything else about it is true.

→ ecfr.gov · 29 CFR 1928.110

9 STATE PLAN · WHO ENFORCES WHAT IN WYOMING

Wyoming State Plan — Occupational Safety and Health

Occupational Safety and Health Administration, U.S. Department of Labor · plan approved 1974, final approval 50 FR 26558 (27 June 1985)

Wyoming runs its own approved occupational safety and health plan through the Department of Workforce Services, covering private employers and state and local government, at 5221 Yellowstone Road, Cheyenne, telephone (307) 777-7786. Field sanitation and most agricultural temporary labor camps are outside the plan: in the State Plan states that ceded them, those are enforced by the federal Wage and Hour Division under the Secretary of Labor's own order rather than by the state.

Why it is cited: because the routing is counterintuitive and getting it wrong wastes a complaint. Safety to the state; water and toilets in the field to Wage and Hour.

→ osha.gov/stateplans/wy

10 STATUTE · DEFINITIONS, AND AN EXCLUSION THAT MATTERS

29 U.S.C. 1802 — Migrant and Seasonal Agricultural Worker Protection Act: definitions

United States Code · Cornell Legal Information Institute

Defines a migrant agricultural worker as one employed in seasonal or temporary agricultural employment who must be absent overnight from their permanent residence,

and a seasonal agricultural worker as one in the same employment who need not be. Both definitions then exclude, at 1802(8)(B)(ii) and 1802(10)(B)(iii), any temporary nonimmigrant authorized to work in agriculture under the H-2A provisions of the immigration statute. Immediate family of the employer is also excluded.

Why it is cited: it is the reason two crews in one field answer to two different statutes, which is the single most confusing thing about farm labor law and is better said outright than left implied.

→ law.cornell.edu · 29 U.S.C. 1802

11 STATUTE · DISCLOSURE, WAGE STATEMENTS, RECORDS

29 U.S.C. 1821 — Information and recordkeeping requirements

United States Code · Cornell Legal Information Institute

Requires written disclosure of the terms at the time of recruitment for migrant workers — place of employment, wage and piece rates, crops and activities, period of employment, transportation, housing, costs charged, any strike in progress, any commission arrangement, and whether state workers' compensation and unemployment insurance will be provided. Requires the rights poster to be displayed at the place of employment. Requires records of the basis of pay, piecework units, hours, total earnings, each sum withheld and its purpose, and net pay, preserved three years, with an itemized written statement given to the worker each pay period.

Why it is cited: it is the pay-stub and disclosure authority for the crew who are **not** on an H-2A visa, who would otherwise find nothing on this page that applied to them.

→ law.cornell.edu · 29 U.S.C. 1821

12 REGULATION · THE CREW VEHICLE

29 CFR part 500, subpart D — motor vehicle safety and insurance

Wage and Hour Division, U.S. Department of Labor · 48 FR 36741 (12 August 1983)

Section 500.121(b): "The amount of vehicle liability insurance shall not be less than $100,000 for each seat in the vehicle, but in no event is the total insurance required to be more than $5,000,000 for any one vehicle." The vehicle standards require operable lights, brakes, tires with at least 2/32-inch tread, steering, horn, mirrors and wipers, fuel lines and tank free of leaks, ventilation, loading within the manufacturer's specification, and a seat for each occupant. Trips over 75 miles and day-haul operations bring in the motor carrier standards

and a driver at least 21 with a season's experience. Workers' own carpools are outside the subpart.

Why it is cited: the ride to the field is where farmworkers are most often killed, and the insurance figure is specific enough to check.

→ ecfr.gov · 29 CFR 500 subpart D

13 REGULATION · WHICH HOUSING STANDARD APPLIES

29 CFR 500.132 — Applicable federal housing standards

Wage and Hour Division, U.S. Department of Labor

Names the two applicable sets — the Employment and Training Administration standards at 20 CFR 654.404 and following, and the Occupational Safety and Health Administration standards at 29 CFR 1910.142 — and divides them by date. Housing whose construction began on or after 3 April 1980, and which was not under contract as of 4 March 1980, must meet the OSHA standards. Older housing may meet either set, at the owner's election.

Why it is cited: "meets federal standards" is meaningless without knowing which standards, and in farm housing the answer genuinely turns on a date in 1980.

→ ecfr.gov · 29 CFR 500.132

14 STATUTE · TWO REMEDIES THE WORKER CONTROLS

29 U.S.C. 1854 and 1855 — private right of action; prohibition on retaliation

United States Code · Cornell Legal Information Institute

Section 1854(a) lets any person aggrieved by a violation sue in federal district court "without respect to the amount in controversy and without regard to the citizenship of the parties and without regard to exhaustion of any alternative administrative remedies." On an intentional violation the court may award actual damages or statutory damages up to $500 per plaintiff per violation. Section 1855 bars intimidating, threatening, blacklisting, discharging or in any manner discriminating against a worker who has with just cause filed a complaint or testified, and allows a complaint to the Secretary within 180 days, with remedies including reinstatement with back pay.

Why it is cited: because these two do not depend on an agency deciding to act, and the 180-day limit is the kind of deadline that is lost by not knowing it exists.

→ law.cornell.edu · 29 U.S.C. 1854

15 AGENCY GUIDANCE · RETALIATION AND IMMIGRATION STATUS

Field Assistance Bulletin No. 2022-02: Protecting Workers from Retaliation

Wage and Hour Division, U.S. Department of Labor · 10 March 2022 · current, not rescinded

States that the Division protects all workers in the United States, including low-wage and immigrant workers; that "except to the extent necessary to enforce the protections available under certain temporary labor certification programs, WHD does not ask about the immigration status of employees"; and that it "does not share information that could identify complainants or workers involved in its investigations that could subject those workers to adverse actions by other government agencies." The Division's complaint pages add that the complainant's name, the nature of the complaint, and whether a complaint exists may not be disclosed.

Why it is cited: it is the only accurate basis for saying anything to a worker about status and confidentiality. This page states what the Division's own guidance says and promises nothing beyond it.

→ dol.gov · Field Assistance Bulletin 2022-02 (PDF)

16 AGENCY GUIDANCE · WHAT IS NOT BEING ENFORCED

Field Assistance Bulletin No. 2025-2: H-2A Farmworker Protection Rule Enforcement Guidance

Wage and Hour Division, U.S. Department of Labor · 20 June 2025

Directs the Division to suspend enforcement of all provisions introduced by the 2024 H-2A final rule, following preliminary injunctions in Georgia and Kentucky covering a group of states and associations, and a nationwide stay of two subsections. A court in North Carolina reached the opposite conclusion and upheld the rule, so the courts genuinely disagree. A proposed rescission was published at 90 FR 28919 on 2 July 2025, with comments closed; no final rescission had been published as of 2 October 2026. Provisions affected include the self-organization and concerted-activity rules, guest access to housing, piece-rate disclosure, immediate wage-rate effectiveness, owner and manager identity disclosure, seat belts in employer transportation, progressive discipline before termination for cause, recruiter disclosure and delayed start.

Why it is cited: it is why this page distinguishes between what is on the books and what is being enforced. The older core protections are untouched by it; the 2024 additions are, and telling a worker otherwise would set them up to fail.

→ dol.gov · Field Assistance Bulletin 2025-2 (PDF)

17 REGULATION · THE UNDER-USED COMPLAINT ROUTE

20 CFR part 658, subpart E — Employment Service and employment-related law complaint system

Employment and Training Administration, U.S. Department of Labor · 81 FR 56352 (19 August 2016), as amended through 88 FR 82731 (24 November 2023)

Requires every state workforce agency to accept complaints alleging violations of employment-related law and to refer them to the enforcement agency, and to notify the complainant which agency received it. For a migrant or seasonal farmworker the representative must first attempt informal local resolution and must refer the complaint on where that fails, where local resolution would be detrimental to the complainant, or after five business days. Farmworker complaints run on shorter clocks than other complaints at every stage, and the complainant must be followed up with monthly.

Why it is cited: it is a real door that almost nobody uses — a worker can walk into a state workforce center and the state must take the complaint and move it along, faster because the complainant is a farmworker.

→ ecfr.gov · 20 CFR 658 subpart E

18 PLAIN-LANGUAGE COMPANION · WITH A CAVEAT

Fact Sheet #26: H-2A of the Immigration and Nationality Act

Wage and Hour Division, U.S. Department of Labor · February 2010, updated 29 April 2024

The Division's own summary of H-2A worker protections, written for workers and employers rather than lawyers, and carrying the toll-free helpline 1-866-4-US-WAGE. It states the recruitment-fee prohibition in one line: employers must not seek or receive payment of any kind from workers for anything related to obtaining the labor certification.

Why it is cited: as the friendliest starting point, and with a warning attached. Its update date is April 2024, so it describes the 2024 rule, parts of which are no longer being enforced — see the bulletin at card 16 before relying on any single line of it.

→ dol.gov · Fact Sheet #26

19 STATE PROGRAM · THE NEAREST DOOR

Migrant & Seasonal Farm Worker Program

Wyoming Department of Workforce Services · page last modified 13 February 2026

The state program for people who work in agriculture: connecting workers with jobs, training and support services, and helping with employment-related problems. Bilingual staff. The office is at 422 East Fremont, Riverton, Wyoming 82501, telephone (307) 856-9231.

Why it is cited: it is the practical way into the state complaint system at card 17, and it is staffed by people who speak both languages this page is written in.

→ dws.wyo.gov · Migrant & Seasonal Farm Worker Program

20 AGENCY CONTACT · WHICH OFFICE COVERS WYOMING

Wage and Hour Division local offices

Wage and Hour Division, U.S. Department of Labor

The office finder states plainly that Wyoming has no Wage and Hour office of its own and directs Wyoming matters to the Salt Lake City District Office, 60 East South Temple Street, Suite 575, Salt Lake City, Utah 84111, telephone (801) 524-5706. The toll-free helpline 1-866-487-9243 reaches the Division from anywhere.

Why it is cited: so that a worker in Worland who is told to contact their local office knows the local office is in another state, and does not conclude there is nobody to call.

→ dol.gov · Wage and Hour local offices

21 STATISTICS · COUNTY AGRICULTURE

2022 Census of Agriculture: Washakie County profile

USDA National Agricultural Statistics Service · released 2024 · public domain

206 farms on 368,504 acres, 38,025 of them irrigated. Hay and forage is the largest crop by acreage at 20,022 acres, then barley at 6,329 and sugar beets at 5,298. The county runs 35,968 cattle and 28,744 sheep, and livestock brings in 55 percent of its $60.6 million in farm sales.

Why it is cited: it is the county this farm is invented to fit. The crops named in column A are the county's actual leading crops, which is what makes the seasonal labor pattern on this page the real one.

→ nass.usda.gov · 2022 county profile, Washakie County (PDF)

22 RULEMAKING · A RULE THAT WENT AWAY IN SEPTEMBER

Rescission of Coordinated Enforcement Regulations

Final rule · Employment and Training Administration, Wage and Hour Division and OSHA, U.S. Department of Labor · 91 FR 55744, published 31 August 2026, effective 30 September 2026

Removes and reserves 29 CFR part 42, which had set formal procedures for coordinating migrant and seasonal farmworker enforcement among the Wage and Hour Division, OSHA and the Employment and Training Administration. The Department's stated reason is that the procedures were obsolete, no longer reflected its structure or practices, and had not been consistently implemented for decades, and that the substantive protections remain in the farmworker statute and the H-2A regulations.

Why it is cited: it took effect two days before this page was written, and it is the reason the page describes who enforces what by naming the agencies directly rather than citing the coordination rule a reader would now find empty.

→ federalregister.gov · 91 FR 55744

C HOW IT WORKS (DETAILS) ✓

Prior know-how is assumed here, and the items become more “technical” toward the bottom. How the wage floor is actually computed, which law reaches which worker, what the courts have just done to all of it, and why this page prints no rate.

Two crews, two statutes

A Washakie County farm at harvest can have two kinds of worker in the same field, and they are protected by different bodies of law that barely touch.

Guest workers on an H-2A visa are covered by the job-offer regulation at 20 CFR 655.122 and enforced under 29 CFR part 501[1]. That is where the hour guarantee, no-cost housing, the transportation duties, the meal obligation and the workers’ compensation override all live.

Migrant and seasonal workers not on that visa are covered by the Migrant and Seasonal Agricultural Worker Protection Act, 29 U.S.C. 1801 and following, with regulations at 29 CFR part 500[11]. That is where recruitment disclosure, wage statements, vehicle insurance and housing certification live.

The division is deliberate and explicit: the farmworker act excludes H-2A workers from both of its worker definitions[10]. So the first question in any dispute is not what happened but how the worker was hired, because that determines which statute to open.

There is a second split inside the farmworker act worth knowing. Its small-business exemption borrows the federal wage law’s man-days test, so a farm below that threshold sits outside the act altogether — except as to any farm labor contractor it hires, who remains covered[10].

How the wage floor is computed, and why no number is printed here

The adverse effect wage rate exists so that bringing in foreign agricultural labor does not pull down the wages of workers already here. It is not the wage; it is one of six floors, and the employer owes the highest of them[2].

Until recently there was essentially one rate per state. Since 2023 the rates are keyed to **occupational classification codes**, and since the rule published 2 October 2025 they are computed from Bureau of Labor Statistics occupational wage data at **two skill levels** — an entry level set from the first third of the wage distribution, and an experienced level set from the

whole of it — with a downward adjustment where the employer houses the worker, capped at 30 percent of the rate[2]. The relevant occupation is the one whose duties the worker performs on **more than half** the workdays of the contract[2].

That change is the practical reason this page carries no figure. There is no longer "the Wyoming rate" to quote. There is a rate for an occupation code at a skill level in a state, published in a spreadsheet that is replaced when rates are reissued[3]. Any number typed into this page would be wrong for most readers immediately and wrong for all of them eventually.

The one piece of that machinery a worker should carry in their head is the ratchet at 20 CFR 655.120(b)(6): where a newly published rate is **lower** than the rate guaranteed in the job order, the employer must go on paying the guaranteed rate[2]. Rates revised mid-season can raise a wage and cannot lower a guarantee.

What the court did on 26 August 2026

A federal court in the Eastern District of California held the Department's wage-setting method unlawful and ordered it to produce a new one and publish new rates promptly. It did **not** vacate the rule, so the published rates continue to apply[4].

The Department's own announcement says two things that sit awkwardly together, and both are worth quoting rather than smoothing over. Employers "should continue to adhere to all applicable laws" and current rates "remain applicable at this time." And employers whose workers were paid under the challenged method during what the Department calls the backpay period "may be required to make wage adjustment payments" — while "no such payment obligation exists at this time"[4].

Translated for a person stacking beets: your rate stands, and there is a live possibility that a later adjustment is owed for this season. No deadline for the new method has been announced. The only sensible act available to a worker is to keep every pay stub and the job order, which is why column A says so plainly.

On the books and not enforced: an honest map

A 2024 rule added a layer of H-2A protections. Courts in Georgia and Kentucky enjoined parts of it for groups of states and associations, a court in Mississippi stayed two subsections nationwide, and a court in North Carolina upheld the rule outright. In June 2025 the Wage and Hour Division instructed its own investigators to **suspend enforcement of every provision the 2024 rule added**, and a rescission was proposed in July 2025 that had not been finalized as of 2 October 2026[16].

This produces a genuinely strange state of affairs: a reader can open the current regulation, find a protection printed in it, and be unable to get it enforced. Anyone writing a worker-facing page has to decide what to do about that. This page states the older protections as live, because they

are, and leaves the 2024 additions out of column A rather than describing an entitlement a worker cannot act on.

For the record, the suspended layer includes seat belt requirements in employer transportation, the progressive-discipline conditions before a termination for cause, piece-rate and recruiter disclosure items, immediate effectiveness of a new wage rate, and guest access to employer housing[16].

Wyoming's two gaps

Two features of Wyoming law shape this page more than anything federal.

The minimum wage does not reach farm work at all. The state statute's definition of employee excludes "any individual employed in agriculture"[5]. The exclusion is categorical, not a lower rate.

Workers' compensation is elective for farm work. Wyoming requires coverage only for employments on its extrahazardous list, and the only agricultural entry on that list is logging — crop production and animal production are absent[6]. An employer may elect coverage for all employees and may withdraw after two years[6].

The interaction with federal law is the striking part. Because Wyoming exempts agriculture, an H-2A employer is required by 20 CFR 655.122(e) to provide insurance giving benefits at least equal to what the state system would give for comparable work, at no cost to the worker, with proof filed before certification[1]. The result is that the federal program closes a hole in state law for guest workers and leaves it open for locals. On a farm that has not elected coverage, the visa holder is insured and the neighbor is not.

Who enforces what, in this state

Wyoming runs an approved state occupational safety and health plan, so ordinary farm safety goes to the state agency in Cheyenne[9]. But Wyoming is among the states that did not take on field sanitation or most agricultural labor camps, and those are enforced here by the federal Wage and Hour Division under the Secretary of Labor's order[9]. Camps tied to egg, poultry or red meat production and to post-harvest processing stay with the state.

Until 30 September 2026 there was a regulation describing how these agencies coordinated farmworker enforcement. It was removed and reserved that day[22]. This page therefore names the agencies and numbers directly instead of pointing at a coordination rule a reader would now find empty.

On the Spanish version

The Spanish page is a peer, not a courtesy: the same answers, the same sources, the same column C. It is linked above the threshold rather than tucked in a footer, because a page whose readers include people who work in Spanish and read legal English with difficulty should not make the second language harder to find than the first.

The law supports the instinct. The farmworker act requires disclosure "in English or, as necessary and reasonable, in Spanish or another language common to migrant or seasonal agricultural workers who are not fluent or literate in English"[11], and the H-2A work contract must be in a language the worker understands[1]. A farm whose crew reads Spanish and whose hiring page is English-only has already fallen behind its own paperwork.

The translation is machine-assisted and reviewed, which is worth saying out loud: it has not been checked by a certified translator, and nothing on either page is legal advice.

Who keeps this page

The farm does not build web pages and should not have to. Behind this demonstration, the county's chapters of the Future Farmers of America — Chief Washakie FFA at Worland High School, and Ten Sleep FFA — are the hoped-for keepers: bringing pages like this one to the farms, and each farm's news back to its page. Whether they will be interested is not yet known.

The pilot program that would pay for the first dozen pages like this one is proposed at washakie-ai.online.

About this page

It is built in the GYR-O format: plain answers first, every source previewed in the middle, the detail last. It is a handful of plain files the farm owns outright — no monthly fee, no login for anyone who reads it, nothing to keep up but the words. It works on a phone in the pickup and prints properly for a kitchen table or a bulletin board.

> **Nothing here is legal advice.** It is a plain reading of public law with every source shown, written so that a worker can take the citation to someone who can act on it. Where the law is unsettled, this page says that it is unsettled rather than choosing an answer.

What went wrong

The format asks every page to record at least one thing that went wrong. Here it is, and it is about this page's own method.

- **The first draft of the pay answer carried a dollar figure.** It was an adverse effect wage rate, carefully sourced, and wrong three times over: it predated the August 2026 rate notice, it was a single statewide number in a system that had stopped working that way in 2023, and the method that produced it had been held unlawful five weeks before this page was written. All three were caught in checking rather than in drafting. The answer now carries no number at all and sends the reader to where the rate actually lives — which is a better page than the one with the figure in it would have been, for every reader, in every future season.
- **A related near miss.** A nearby farmworker services office was going to be listed with its address and telephone number. The listing turned out to rest on a page with a 2022 copyright and a federal funding table from 2019. Publishing an unverified telephone number for a worker in trouble is the worst failure this page could have, so the office is not listed until someone has called it.

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